

MEMORANDUM OF UNDERSTANDING
Between
THE CITY OF CHEYENNE AND
THE CHILDREN'S MUSEUM OF CHEYENNE

THIS AGREEMENT is made and entered into by and between the City of Cheyenne, Wyoming, a municipal corporation organized under the laws of the State of Wyoming, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("CITY"), and the Children's Museum of Cheyenne, located at P.O. Box 92, Cheyenne, Wyoming 82003 ("Children's Museum").

I. PURPOSE

Pursuant to Resolution No. #6316, attached and incorporated herein with supporting documentation consisting of a total of four (4) pages, the purpose of this Agreement is for the CITY to pay the Children's Museum for a portion of the of the costs for financial grant consideration for the Children's Museum of Cheyenne Project in accordance with the Proposition #10 of the 2021 voluntary one percent (1%) specific purpose sales and use tax ("6th penny tax") related to the development of downtown improvements and attractions.

II. TERM

This Agreement shall commence on the date last executed by the duly authorized representatives of the parties to this Agreement and shall remain in full force and effect until June 1, 2024 or terminated as provided herein.

III. RESPONSIBILITIES OF THE CITY

The CITY shall pay the Children's Museum up to Two Hundred Eighty-Eight Thousand, Two Hundred Fifty Dollars (\$288,250.00) from the 2021 voluntary one percent (1%) specific purpose sales and use tax ("6th penny tax"), upon presentation of a properly executed invoice and accounting as prescribed by the City Treasurer. The CITY's payment obligation under this Agreement is capped at Two Hundred Eighty-Eight Thousand, Two Hundred Fifty Dollars (\$288,250.00). Payments shall be made in accordance with Wyo. Stat. § 16-6-602 (as amended).

IV. RESPONSIBILITIES OF THE CHILDREN'S MUSEUM

A. The Children's Museum agrees that the funds paid by the CITY pursuant to this Agreement shall not be for the express aid of any private citizen, or in violation of Article 16, Section 6 of the Constitution of the State of Wyoming.

B. The Children's Museum agrees to provide an invoice to the CITY consisting at a minimum of detailed accounting describing the costs and services provided pursuant to this Agreement.

C. The Children's Museum agrees to maintain generally accepted accounting procedures and practices, and to maintain books, records, documents, and other evidence to sufficiently and properly reflect all transactions of any nature relating to this Agreement or any funds provided by or through the CITY including, but not limited to, the funds referenced herein. Any books, records, documents, and other evidence shall be made available upon written request of the CITY for the inspection at the offices of the Children's Museum in Cheyenne, Wyoming.

D. The Children's Museum shall provide documentation that the project has gone through a public procurement process that generally complies to the greatest extent possible the intent of Wyoming Statute, including §15-1-113. The Children's Museum agrees to provide appropriate documentation, including, but not limited to paid invoices, bidding documents, solicitation documents, and procurement documents.

E. The Children's Museum agrees to retain all required records for three (3) years after the CITY makes final payment and all other matters relating to the Agreement are concluded. The Children's Museum agrees to permit access by the CITY or any of its duly authorized representatives to any books, documents, papers, and records of the Children's Museum which are directly pertinent to this specific Agreement for purposes including, but not limited to, audit, examination, excerpts, and transcriptions. It is agreed that finished or unfinished documents, data, or reports, prepared by the Children's Museum under this Agreement shall be considered the property of the CITY and upon completion of the services to be performed, or upon termination of this Agreement for cause, or for the convenience of the CITY, will be turned over to the CITY.

V. GENERAL PROVISIONS

A. Independent Contractor. The services to be performed by the Children's Museum are those of an independent Contractor and not as an employee of CITY. The Children's Museum is not eligible for City of Cheyenne Employee benefits and will be treated as an independent contractor for federal tax filing purposes. The Children's Museum assumes responsibility for its personnel who provide services pursuant to this Agreement and will make all deductions required of employers by state, federal, and local laws and shall maintain liability insurance for each of them. The Children's Museum is free to perform the same or similar services for others.

B. Acceptance Not Waiver. CITY's approval of the reports and work or materials furnished hereunder shall not in any way relieve the Children's Museum of responsibility for the technical accuracy of the work. CITY's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any rights under this Agreement or of any cause of action arising out of the performance of this Agreement.

C. Termination. This Agreement may be terminated (a) by either party at any time for failure of the other party to comply with the terms and conditions of this agreement; (b) by either party with thirty (30) days' prior written notice to the other party; or (c) upon mutual written agreement by both parties.

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D. Entire Agreement. This Agreement consisting of five (5) pages plus supporting documentation consisting of four (4) pages represents the entire and integrated agreement and understanding between the parties and supersedes all prior negotiations, statements, representations, and agreements, whether written or oral.

E. Assignment. Neither this Agreement nor any rights or obligations hereunder shall be assigned or delegated by a party without the prior written consent of the other party.

F. Modification. This Agreement shall be modified only by a written agreement, duly executed by all parties hereto.

G. Invalidity. If any provision of this Agreement is held invalid or unenforceable by any court of competent jurisdiction, or if the CITY is advised of any such actual or potential invalidity or unenforceability, such holding or advice shall not invalidate or render unenforceable any other provision hereof. It is the express intent of the parties that the provisions of this Agreement are fully severable.

H. Applicable Law and Venue. The parties mutually understand and agree this Agreement shall be governed by and interpreted pursuant to the laws of the State of Wyoming, without regard to its conflict of laws principles. If any dispute arises between the parties from or concerning this Agreement or the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of Wyoming, First Judicial District, sitting at Cheyenne, Wyoming. The foregoing provisions of this paragraph are agreed by the parties to be a material inducement to the Children's Museum and to CITY in executing this Agreement. This provision is not intended nor shall it be construed to waive CITY's governmental immunity as provided in this Agreement.

I. Contingencies. The Children's Museum certifies and warrants no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement.

J. Discrimination. All parties agree they will not discriminate against any person who performs work under the terms and conditions of this Agreement because of race, color, gender, creed, handicapping condition, or national origin.

K. ADA Compliance. All parties agree they will not discriminate against a qualified individual with disability, pursuant to a law as set forth in the Americans with Disabilities Act, P.L. 101-336, 42 U.S.C. § 12101, *et seq.*, and/or any properly promulgated rules and regulations relating thereto.

L. Governmental/Sovereign Immunity: CITY does not waive its Governmental/Sovereign Immunity, as provided by any applicable law including Wyo. Stat. § 1-

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39-101, *et seq.*, by entering into this Agreement. Further, CITY fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract, or any other theory of law, based on this Agreement.

M. Indemnification. To the fullest extent permitted by law, the Children's Museum agrees to indemnify and hold harmless CITY, its elected and appointed officials, employees, and volunteers from any and all liability for injuries, damages, claims, penalties, actions, demands, or expenses arising solely from or in connection with the work that is to be performed by or on behalf of the Children's Museum for CITY except to the extent liability is caused by the sole negligence or willful misconduct of CITY, its elected and appointed officials, employees, and volunteers. The Children's Museum shall carry liability insurance sufficient to cover its obligations under this provision and provide CITY with proof of such insurance.

N. Third Parties. The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to the Agreement and shall inure solely to the benefit of the parties to this Agreement.

O. Conflict of Interest. CITY and the Children's Museum affirms, to their knowledge, that no Children's Museum employee has any personal beneficial interest whatsoever in the Agreement described herein. No staff member of the Children's Museum, compensated either partially or wholly with funds from this Agreement, shall engage in any conduct or activity which would constitute a conflict of interest relative to this Agreement.

P. Force Majeure. The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

Q. Limitation on Payment. CITY's payment obligation is conditioned upon the availability of funds which are appropriated, allocated, or approved by the Governing Body for the payment of this obligation. If funds are not allocated, appropriated, or approved and available, in the fiscal judgment of the CITY, for the continuance of the services and equipment provided by the Children's Museum, the Agreement may be terminated by CITY at the end of the period for which funds are available. No penalty shall accrue to CITY in the event this provision is exercised,

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and CITY shall not be obligated or liable for any future payments due or for any damages as a result of termination under this provision.

R. Notices. All notices required and permitted under this Agreement shall be deemed to have been given, if and when deposited in the U.S. Mail, properly stamped and addressed to the party for whom intended at such party's address listed herein, or when personally delivered personally to such party. A party may change its address for notice hereunder by giving written notice to the other party.

S. Compliance with Laws. The Children's Museum shall comply with all applicable federal, state, or local laws, regulations, and ordinances.

In witness whereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

This Agreement is effective the date of the last signature affixed to this page.

CITY OF CHEYENNE, WYOMING

By: _____ Date _____
Patrick Collins, Mayor

(SEAL)

Attest:

BY: _____
Kristina F. Jones, City Clerk

CHILDREN'S MUSEUM OF CHEYENNE

By: _____ Date _____
Caroline Veit, President

ATTEST:

By: _____ Date _____
Amy Gorbey, Secretary

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RESOLUTION NO. _____

ENTITLED: "A RESOLUTION EXPRESSING THE WILL OF THE GOVERNING BODY TO CONSIDER SPECIFIED DOWNTOWN 6TH PENNY TAX PROJECT FUNDS FOR INFRASTRUCTURE ENHANCEMENTS FOR THE CHILDREN'S MUSEUM OF CHEYENNE."

WHEREAS, the City of Cheyenne has certain funds available for downtown Cheyenne maintenance and improvement projects through the 2021 voluntary one percent (1%) specific purpose sales and use tax ("6th penny tax") approved by the affected citizenry of Laramie County;

WHEREAS, Proposition #10 of the 6th penny tax provided that: "\$6,017,966 to City of Cheyenne and the interest earned thereon for downtown improvements and maintenance project to improve and maintain infrastructure such as roads, parking, curbs, gutters, sidewalks, lighting and alleys in the DDA District; to operate and maintain the Depot Plaza";

WHEREAS, literature concerning Proposition #10 of the 6th penny tax informed the voter of the following facts:

- Ninety-one percent (91%) of Cheyenne and Laramie County residents have vocalized wanting to see efforts that actively work to improve Downtown Cheyenne;
- Sixty-eight percent (68%) of Cheyenne and Laramie County visitors have identified "Experiencing Downtown" as their top activity to do in Cheyenne which contributes to sales tax revenue benefits for all of Laramie County;
- Infrastructure improvements have an estimated cost increase of four percent (4%) each year, which impacts the bottom-line expenses for necessary repairs, maintenance, and improvements that benefit the entire community; and,
- As the heart of the Capital City of Wyoming, Downtown Cheyenne is the center of social, economic, and cultural development;

WHEREAS, according to a 2018 Association of Children's Museums' study, "The Economic Impact of Children's Museums: The Ripple Effect of Spending," children's museums created \$5.5 billion in economic activity in 2016. The study, produced in collaboration with Knew Knowledge Organization Ltd, and funded by the Institute of Museum and Library Service, emphasized how impressive this \$5.5 billion figure given that it was generated by a \$1.5 billion investment, with more than three hundred fifty percent (350%) return. Based on those numbers, the Children's Museum of Cheyenne's initial \$2.2 million investment will eventually equate to roughly \$8 million in Cheyenne and the surrounding area;

WHEREAS, Costs provided by the Children's Museum of Cheyenne provided in the Construction Manager At Risk (CMAR) estimated Costs table and map, attached as (Appendix A)

will reflect that the Children's Museum of Cheyenne meets the requirements stated under Proposition #10 of the 6th penny tax; and,

WHEREAS, with approval of this resolution the Cheyenne City Attorney's Office will introduce a contract at the following City Council meeting to meet all stipulations of the City of Cheyenne purchasing requirements and legal requirements regarding the transfer of funds to the Children's Museum of Cheyenne from Proposition #10 of the 6th penny tax.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body through issuance of this Resolution appropriates authorized 6th penny tax funding in an amount not to exceed Two Hundred Eighty-Eight Thousand, Two Hundred Fifty Dollars (\$288,250.00) for the purposes specified herein.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

Recco, Inc. dba
Five-R Company

P.O. Box 20368

Cheyenne, WY 82003

Ph. (307) 638-7566

Fax (307) 632-1960

recco@fivercompany.com

March 21, 2023

Children's Museum of Cheyenne
1618 O'Neil Avenue
Cheyenne, WY 82001

RE: City Proposition #10 Funding Application – Scope of Work Breakdown

To Whom It May Concern:

Recco, Inc. dba Five-R Co., acting as Construction-Manager-At-Risk (CMAR) is pleased to provide the following breakdown of costs for financial grant consideration, for the Children's Museum of Cheyenne Project, by the City of Cheyenne, in accordance with the overarching mission of Proposition #10 to develop downtown improvements and attractions.

Scope of Work:

1. Site Utilities (Tap Fees; Infrastructure – Water, Sanitary Sewage, Storm Sewage) \$96,750.00
2. Right-of-Way (ROW) Improvements
 - Selective Site Demolition for ROW Improvements \$14,500.00
 - Site Grading & Base Course for ROW Improvements..... \$10,750.00
 - Site Hardscapes for ROW (Sidewalk, Curb & Gutter, Tree Wells) \$66,500.00
 - Asphalt Paving & Base Course in ROW (Paving & Patching) \$50,000.00
3. Alley Right-of-Way Improvements
 - Alley Grading, Base Course & Concrete Paving \$49,750.00

TOTAL ESTIMATED COST \$288,250.00

These estimates were generated from the bidding process that was completed in April 12, 2022 and was publicly advertised for bids.

If you should have any questions regarding this estimate, please let us know.

Regards,



Royce Fertig
Recco, Inc. dba Five-R Co.

